

Court No. - 40

Case :- WRIT - C No. - 22257 of 2023

Petitioner :- Rajendra Prasad Sharma

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Dr. Akhilesh Kumar

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

As prayed, put up tomorrow as fresh.

Order Date :- 13.7.2023

A. Pandey

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Petitioner :- Rajendra Prasad Sharma

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Dr. Akhilesh Kumar

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Gaurav Tripathi

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State respondents, Shri Baleshwar Chaturvedi, Advocate and Shri Gaurav Tripathi, Advocate appears for respondents.
2. The petitioners have preferred this writ petition with prayer to direct the respondents to provide electricity connection in house of petitioner bearing Plot no.8 situated at Chandra Nagar Extension Mauza Gelana, Tehsil and District Agra.
3. Sri Baleshwar Chaturvedi, Advocate and Shri Gaurav Tripathi, learned counsel appearing for respondent submits that there is outstanding dues of electricity over the property in question and as per U.P. Electricity Supply Code 2005 without clearing the same, no new connection can be provided.
4. Confronted with this situation, learned counsel for the petitioner submits that the petitioner is intended to clear the outstanding amount in case easy installments are provided as on account of financial miseries, the petitioner cannot deposit the outstanding amount in one stroke and as such, direction may be given to the respondents to accorded reprieve of installments and fix easy installments as per Clause 6.14 of U.P. Electricity Supply Code 2005.
5. Such request is not objection by learned counsel for the respondent. He submits that the Department is interested in realizing the entire due amount and in case petitioner approaches the competent authority afresh by moving an appropriate application, definitely the same would be considered as per law.
6. Be that as it may, no useful purpose would be served in keeping the writ petition pending consideration. The writ petition, on consent, is ***disposed off*** with observations that in

case the petitioner moves a fresh application before the Competent Authority under Clause 6.14 of U.P. Electricity Supply 2005 within a weeks time, the Authority concerned shall proceed to dispose of the application, so that the petitioner may deposit the due amount and the authority may also process the application for providing the fresh electricity connection.

Order Date :- 21.7.2023

A. Pandey